IN THE UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF KENTUCKY
NORTHERN DIVISION AT COVINGTON

Civil Action No. 2:25-cv-00166-DLB-CJS

JAIMEE SEITZ, individually, and as personal representative of AUDREE HEINE, a minor,

Plaintiff,

v.

ROBLOX CORPORATION, DISCORD INC., TIKTOK LLC, TIKTOK INC., AND BYTEDANCE INC.,

Defendants.

MEMORANDUM OF LAW IN SUPPORT OF DEFENDANT DISCORD INC.'S MOTION TO DISMISS

Pursuant to Federal Rule of Civil Procedure 12(b)(6), Defendant Discord Inc. respectfully files this Memorandum in Support of its Motion to Dismiss with prejudice all claims against Discord by Plaintiff Jaimee Seitz, individually, and as personal representative of Audree Heine.

I. INTRODUCTION

Plaintiff alleges third parties used Discord's messaging service to coerce her daughter, Audree Heine, to take her own life. She brings survival claims as the personal representative of her daughter's estate and a wrongful death claim on her own behalf. Discord monitors for, blocks, and removes harmful messages and user profiles. But the law does not hold a messaging service liable under any theory for failing to police the speech and criminal acts of users who evade those efforts. The Court should dismiss the claims against Discord with prejudice.[1]

First, Section 230 of the Communications Decency Act, 47 U.S.C. § 230(c)(1), bars each claim. Section 230 provides broad protection from claims that would require online publishers

[1] Discord has moved the Court to compel arbitration, and only if it declines, to dismiss the claims.

like Discord to perfectly monitor, screen, block, or remove content provided by third parties. The Complaint seeks to impose an unprecedented duty on messaging apps to prevent the misconduct of users by asking the Court to hold Discord liable for failing to screen for and block the messages Heine exchanged with those users. Every appellate court to consider similar theories—including as to the very causes of action pled here, as well as another District Court in the Sixth Circuit considering similar claims against Discord, *Doe v. Discord, Inc.*, 2026 WL 1067574 (N.D. Ohio 2026), has rejected them under Section 230. This Court should do the same.

Second, the First Amendment also bars all but Plaintiff's fraud claim. Under *Smith v. California*, 361 U.S. 147 (1959), Discord cannot be liable for failing to block the profiles and harmful messages that users posted on its service unless Discord actually knew the content was unlawful. The Complaint does not, and cannot, allege such knowledge.

Third, the claims fail on their own. All of the claims fail because Plaintiff does not and cannot plausibly allege that Discord proximately caused Heine's suicide given the intervening conduct of the third parties who coerced her. Plaintiff fails to allege—much less with the particularity required under Rule 9(b)—that she or Heine relied on any actionable omissions or misrepresentations. The product liability claims fail because Discord is not a product subject to product liability law and because the app's alleged dangers are inherent in online communication. And the negligence-based claims fail because Discord owed Plaintiff no duty.

II. BACKGROUND

A. Discord Is an Online Communications Service.

Discord operates a voice, video, and text messaging service. D.E. 19 ("Compl.") ¶ 133. Unlike social media platforms, Discord does not use algorithms to select content for users. Instead, Discord allows users to post messages, upload files, and share images in direct messages and in group chats (known as "servers" or "channels") they have joined. *Id.* In short, Discord allows users to message one another, much like text messaging, iMessage, or WhatsApp. *Id.* ¶¶ 133-134.

Although no law requires apps like Discord to screen messages or implement safety technologies, Discord maintains content moderation policies and safety features, including content filtering, AI-powered moderation, and parental controls to filter and block content. *Id.* ¶¶ 139-140, 149, 169. Discord also releases regular, public reports on its efforts to protect users from harmful content. *See id.* ¶ 142 & nn.149-150; Ex. B (Transparency Reports). And Discord's Terms of Service make clear, while Discord has—and exercises—the discretion to block or remove posts, it is "not responsible" for users' content and "cannot always prevent you from encountering" "objectionable or offensive" content. *See* Ex. A (Terms of Service) at 6-8.[2]

B. Plaintiff Seeks to Hold Discord Liable For Failing to Block Harmful Messages.

Predators promoting violence and self-harm allegedly communicated with Heine through Roblox, TikTok, and messages on Discord, and manipulated her into committing suicide. *Id.* ¶¶ 215-220. Plaintiff alleges Discord is liable because it does not restrict the messages minors like Heine can exchange, *id.* ¶¶ 139, 169, 174-175, does not identify and remove predatory user profiles, *id.* ¶¶ 138, 168, 170, 176-177, does not respond to abuse reports fast enough, *id.* ¶ 179, does not warn of predators, *id.* ¶ 178, and misrepresents the efficacy of its moderation efforts, *id.* ¶¶ 141-149. Plaintiff asserts claims for fraud and misrepresentations (Counts 1 & 2), negligence (Counts 3-6), product liability (Counts 7-8), and wrongful death (Count 9). *Id.* ¶¶ 224-393.

III. LEGAL STANDARD

A complaint must be dismissed if it fails to state a claim for relief that is plausible on its face. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). The failure to assert a "viable legal theory" requires dismissal. *Goins v. Saint Elizabeth Med. Ctr.*, 640 F. Supp. 3d 745, 751 (E.D. Ky. 2022). Fraud-based claims must also, under Rule 9(b), "state with particularity the circumstances constituting fraud," including "the 'who, what, when, where, and how' of the alleged fraud." *Greer v. Strange Honey Farm, LLC*, 114 F.4th 605, 614 (6th Cir. 2024) (citation omitted).

[2] The Court may consider the Terms and Transparency Reports because Plaintiff references them. *See In re Omnicare, Inc. Sec. Litig.*, 769 F.3d 455, 466 (6th Cir. 2014); Compl. ¶¶ 138, 142.

IV. ARGUMENT

A. Section 230 Bars All of Plaintiff's Claims.

1. Section 230 Bars Claims Requiring Platforms to Perfectly Moderate Content.

Section 230 exists to promote the free exchange of information and "encourage service providers to self-regulate the dissemination of offensive material over their services" by protecting them from suit—not just liability—when offensive material slips through. *Jones v. Dirty World Ent. Recordings LLC*, 755 F.3d 398, 407-08, 417 (6th Cir. 2014) (quoting *Zeran v. Am. Online, Inc.*, 129 F.3d 327, 331 (4th Cir. 1997)). It does this by superseding the common law, under which a platform could escape liability for hosting harmful content if it made no effort to locate and remove it, but could be liable if it tried and failed to do so. *See Fair Hous. Council of San Fernando Valley v. Roommates.com, LLC*, 521 F.3d 1157, 1163 (9th Cir. 2008) (en banc) (cited with approval in *Jones*, 755 F.3d at 412); *Discord*, 2026 WL 1067574, at *6 (statute eliminates "grim choice" posed by common law). Section 230(c)(1) thus protects online services from claims that seek to hold them liable for failing to perfectly monitor, screen, block, modify, edit, or remove third-party content. *See O'Kroley v. Fastcase, Inc.*, 831 F.3d 352, 355 (6th Cir. 2016); *Barnes v. Yahoo!, Inc.*, 570 F.3d 1096, 1102 (9th Cir. 2009).

Disputes as to Section 230's application must be resolved promptly and in favor of protection to shield online platforms "from suit," not merely "liability." *Jones*, 755 F.3d at 408, 417 (cleaned up). That means dismissing on the pleadings claims that would impose liability for publishing or failing to remove third-party content. *O'Kroley*, 831 F.3d at 354 (affirming dismissal on pleadings). Courts consistently apply Section 230 to dismiss any claims seeking to hold platforms liable for the abuse of one user by another "when the factual predicate is that the two users engaged in messaging using the platform's service." *Discord*, 2026 WL 1067574, at *7 (citing such cases). Both appellate courts[3] and trial courts[4] have reached this same conclusion.

2. Section 230 Bars Plaintiff's Claims.

"Section 230 prohibits holding companies responsible for moderating or failing to moderate content." *Bride v. Yolo Techs., Inc.*, 112 F.4th 1168, 1182 (9th Cir. 2024). It applies where (1) the defendant is an interactive computer service, and (2) a claim treats the defendant as the publisher (3) of content provided by a third party. *Jones*, 755 F.3d at 409. Discord is an interactive computer service. *Discord*, 2026 WL 1067574, at *8. The other elements are also met.

a. The Complaint treats Discord as a publisher of third-party content.

A claim treats a defendant as a publisher if it seeks to hold the defendant liable for reviewing, editing, or "deciding whether to publish, withdraw, postpone or alter" third-party content. *O'Kroley*, 831 F.3d at 355 (cleaned up). This is a broad standard. "[A]ny activity that can be boiled down to deciding whether to exclude material that third parties seek to post online is perforce immune under section 230." *Roommates.com*, 521 F.3d at 1170-71. The determinative question is the nature of "the duty that the plaintiff alleges the defendant violated." *Barnes*, 570 F.3d at 1102. If it involves exercising "editorial functions"—such as deciding

[3] *Doe v. Grindr Inc.*, 128 F.4th 1148, 1153-54 (9th Cir. 2025) (minor abused by adult he met on app); *Doe v. MySpace, Inc.*, 528 F.3d 413, 418 (5th Cir. 2008) (same); *In re Facebook, Inc.*, 625 S.W.3d 80, 101 (Tex. 2021) (similar); *Doe ex rel. Roe v. Snap, Inc.*, 2023 WL 4174061, at *1 (5th Cir. 2023) (similar); *Jane Doe No. 1 v. Backpage.com, LLC*, 817 F.3d 12, 21 (1st Cir. 2016) (similar); *Herrick v. Grindr LLC*, 765 F. App'x 586, 588, 591 (2d Cir. 2019) (offline harassment); *Beckman v. Match.com, LLC*, 668 F. App'x 759, 759 (9th Cir. 2016) (similar); *Doe II v. MySpace Inc.*, 175 Cal. App. 4th 561, 572-75 (2009) (abuse of minor).

[4] *See, e.g.*, *Doe v. Grindr, LLC*, 2025 WL 977367, at *3 (N.Y. Sup. Ct. 2025); *K.B. v. Backpage.com, LLC*, 768 F. Supp. 3d 1057, 1067 (N.D. Cal. 2025); *Bogard v. TikTok Inc.*, 2025 WL 604972, at *18 (N.D. Cal. 2025); *Doe v. Snap, Inc.*, 2025 WL 2926161, at *4 (Del. Super. Ct. 2025); *Doll v. Grindr Inc.*, 2024 WL 4788525, at *4-8 (Ky. Cir. Ct. 2024); *V.V. v. Meta Platforms, Inc.*, 2024 WL 678248, at *9-11 (Conn. Super. Ct. 2024); *L.W. v. Snap Inc.*, 675 F. Supp. 3d 1087, 1101 (S.D. Cal. 2023); *Doe v. Grindr, LLC*, 2023 WL 7053471, at *2 (M.D. Fla. 2023); *Doe v. Kik Interactive, Inc.*, 482 F. Supp. 3d 1242, 1252 (S.D. Fla. 2020); *Rodriguez v. OfferUp, Inc.*, 2019 WL 13247290, at *2-4 (M.D. Fla. 2019); *Lee v. OfferUp, Inc.*, 2018 WL 4283371, at *4 (E.D. La. 2018); *Saponaro v. Grindr, LLC*, 93 F. Supp. 3d 319, 322-25 (D.N.J. 2015); *M.A. v. Vill. Voice Media Holdings, LLC*, 809 F. Supp. 2d 1041, 1047-53 (E.D. Mo. 2011).

whether to publish, remove, edit, monitor, or screen third-party content—Section 230 bars the claim. *Jones*, 755 F.3d at 416 (cleaned up); *accord Barnes*, 570 F.3d at 1102, 1105.

The Ninth Circuit's decision in *Grindr*, 128 F.4th at 1151, is on point. That case affirmed dismissal of a minor plaintiff's negligence, product liability, failure to warn, and misrepresentation claims against the dating app Grindr for injuries he allegedly suffered after exchanging messages with an adult who then assaulted him offline. *Id.* As here, the plaintiff alleged that Grindr's failure to prevent him from communicating with adult perpetrators breached a "duty not to design or manufacture defective products." *Id.* at 1153. And as here, the plaintiff argued that Section 230 did not bar his claims because they arose from Grindr's own "features and functions"—like its age-verification and messaging features. *Id.* The Ninth Circuit disagreed, holding the claims substantively required Grindr to block profiles and prevent "messages between users that could lead to illegal activity." *Id.* "These claims necessarily implicate Grindr's role as a publisher of third-party content," the court explained, so Section 230 barred them. *Id.*

An Ohio District Court recently applied these principles to dismiss materially identical negligence, product liability, design-defect, failure-to-warn, misrepresentation, and fraudulent concealment claims. *Discord*, 2026 WL 1067574. The plaintiff claimed she was exploited through messages she exchanged with an adult on Discord. Just like Plaintiff here, she faulted Discord for designing an app that allowed "unsupervised" messaging between minors and adults; failed to verify users' ages and identities; did not "implement" effective "parent controls" or "parental notifications" to monitor and supervise messages; neglected to impose default safety settings that would block messages between unconnected users; and failed to adequately "monitor for, report and prevent" predators' use of its service. *Id.* at *9-10. The plaintiff claimed Discord "concealed or misrepresented that its content moderation efforts were imperfect and did not match its general safety descriptions," and that Discord's statements describing its safety practices falsely "implied that its platform was safe for minors." *Id.* at *11, *12. Concluding that

Grindr, 128 F.4th at 1148, was on point, the court dismissed the claims. *Discord*, 2026 WL 1067574, at *12.

The Fifth Circuit reached the same conclusion in *MySpace*. There, a minor claimed that a website failed to implement adequate safety features, including age-verification, to prevent the minor from using MySpace to communicate with an adult who later assaulted her. 528 F.3d at 416, 419-22. Holding that Section 230 barred her negligent design claims, the district court observed, and the Fifth Circuit agreed, that "the underlying basis of Plaintiffs' claims is that, through postings on MySpace," the assailant and victim "met and exchanged personal information which eventually led to an in-person meeting and the sexual assault." *Id.* at 419-20. Since the claims were "merely another way of claiming that MySpace was liable for publishing the communications," and since the only way MySpace could have avoided liability was by screening for and blocking the minor and her assailant's profiles and messages, Section 230 applied. *Id.* at 420.

Plaintiff's claims assert duties materially identical to those rejected in *Grindr*, *Discord*, and *MySpace*. They must be dismissed with prejudice.

Negligence (Claims 3, 5, 6, and 9). The negligence-based claims fault Discord for (i) not verifying users' names or ages, (ii) not applying the most restrictive communication settings by default, (iii) permitting minors to change settings that parents set for them, (iv) not publishing the content of minors' messages to their parents' accounts, (v) allowing users to exchange messages with members of the same server and send friend requests to strangers, (vi) not using a higher age rating in the app stores, and (vii) responding to reports too slowly. Compl. ¶¶ 138-139, 168-170, 174-179. All these alleged duties would require Discord to alter how it monitors, screens, flags, blocks, or removes users' messages and profiles, *Jones*, 755 F.3d at 416, including the "neutral tools" it offers that allow users to communicate in different chats and formats. *Id.* at 411. The Sixth Circuit dismissed similar claims seeking to hold a website liable for the "design" of "content submission" tools because Section 230 bars claims for "providing neutral tools to carry out what may be unlawful." *Id.* at 411, 416 (citation omitted); *see also, e.g.*, *Grindr*, 128

F.4th at 1153 (Section 230 barred negligence claims faulting Grindr for offering "features and functions" "meant to facilitate the communication and content of others") (quotation omitted); *Discord*, 2026 WL 1067574, at *10 (Section 230 barred claim against Discord asserting materially identical duties).

Strict Liability: Defective Design (Claim 7). Plaintiff's defective design claim would impose identical editorial duties. The Complaint faults Discord for providing a service that allows "children to come into contact with [child] predators," Compl. ¶ 349 (emphasis added), and demands that Discord provide "[e]ffective parental controls" to stop harmful message exchanges; reconfigure features to "block[] direct messaging between child and adult users"; block content from "known abusers"; offer a more restrictive "[c]ontrolled chat" option; and screen users' profiles and age information. *Id.* ¶ 357. Like the negligence claims, this claim would require Discord to perfectly monitor for and block harmful messages, and alter the operation of the neutral tools it provides users to send messages.

Courts have repeatedly held Section 230 bars analogous claims. *Grindr*, 128 F.4th at 1153-54 (affirming dismissal of claim "that Grindr breached its duty not to design or manufacture defective products by failing to prevent a minor from being matched with predators"); *Yolo*, 112 F.4th at 1180 (affirming dismissal of design-defect claims that anonymous messaging features exposed users to harmful user posts); *In re Facebook*, 625 S.W.3d at 93-94 (Section 230 bars "claims alleging that defectively designed internet products allowed for transmission of harmful third-party communications"); *Discord*, 2026 WL 1067574, at *10 (same). This Court should do the same. *See also Jones*, 755 F.3d at 416 (Section 230 barred claim targeting platform's "design" of "content submission" features).

Torts of Omission: Concealment and Failure to Warn (Claims 1, 4, 8). Plaintiff cannot overcome Section 230 by reframing the duties she seeks to impose as requiring Discord to make additional disclosures, or better warn users, about the risks of exploitation on the platform. *Cf.* Compl. ¶¶ 224-239, 281-299, 369-387. This theory still seeks to hold Discord liable "for not mitigating … the harmful effects" of users' messages, which in substance, faults Discord "for not

moderating content in some way, whether through deletion, change, or suppression." *Yolo*, 112 F.4th at 1180 (failure to warn minors about risks of bullying or harassment by other users' messages barred by Section 230). Relying on *Yolo*, the *Grindr* court held that Section 230 prohibited any requirement that Grindr warn users about the risks minors may be exploited on its app. *Grindr*, 128 F.4th at 1154; *see also, e.g.*, *K.B.*, 768 F. Supp. 3d at 1066-67 (applying *Yolo* to bar duty to warn Instagram users that "trafficking is rampant"). The Ohio federal court considering a nearly identical theory of liability against Discord did the same. *See Discord*, 2026 WL 1067574, at *11-12 (citing both *Grindr* and *Yolo*).

That is the precise warning Plaintiff claims Discord was obligated to give. Plaintiff's failure-to-warn claims (Claims 4 and 8) fault Discord for not warning that predators may misuse its service to groom minors for violence. Compl. ¶¶ 289, 292, 374, 379. But requiring online services to post such warnings "about third-party content is a form of editing" that Section 230 prohibits. *Herrick v. Grindr, LLC*, 306 F. Supp. 3d 579, 592 & n.8 (S.D.N.Y. 2018), *aff'd*, 765 F. App'x 586 (2d Cir. 2019) (Section 230 barred failure-to-warn claim); *see also In re Facebook*, 625 S.W.3d at 93 (rejecting nearly identical duty to warn minors of exploitation risk because warning addressed "decisions relating to the monitoring, screening, and deletion of third-party content").

[Omitted from this transcription: the rest of Part IV.A.2 (the concealment claim, Claim 1, and the remaining Section 230 discussion), Parts IV.B through IV.D (First Amendment, causation, Rule 9(b) reliance, product liability and duty), and the footnotes they carry.]

CONCLUSION

Discord respectfully asks the Court to dismiss Plaintiff's claims with prejudice.

Dated: August 7, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that the foregoing was filed with the Court's ECF system on the 7th day of August 2026, which serves an electronic copy to the following:

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